

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY  
OF THE CITY OF CHEYENNE**

Office of City Clerk

March 12, 2020

The Governing Body of the City of Cheyenne convened in a special meeting on this date beginning at 6:00p.m. in City Council Chambers for the purpose of collective labor bargaining with the Cheyenne Professional Fire Fighters, International Association of Fire Fighters, Local No. 279. Present were: MAYOR - Marian J. Orr; COUNCIL MEMBERS – Rocky Case, Mike Luna, Dr. Mark Rinne, Scott Roybal. and Jeff White. Absent: Bryan Cook, Ken Esquibel, Pete Laybourn, Dicky Shanor. Also present: Kris Jones, City Clerk; Michael O'Donnell, City Attorney; Robin Lockman, City Treasurer, and Chief Greg Hoggatt, Fire and Rescue Department. The pledge of allegiance was recited.

Mayor Orr requested those who may be speaking to use the microphones so that their comments can be heard. Mayor Orr advised the meeting would be audio recorded and available on Facebook live and stated that Wyoming State Statute §16-4-405(a)(x) of the Public Meetings Act allows the governing body to meet in executive session to consider or tender offers regarding salaries, wages or other terms and conditions of employment during negotiations with the fire fighters union and that any motion approved by the governing body to move into executive session during the special meetings would be pursuant to this section of statute. Mayor Orr further advised if the governing body met in executive session, they would be meeting in the Mayor's Conference Room, and that Fire Union representatives were welcome to use Committee Room 104 for the purpose of meeting to caucus.

Mayor Orr noted for the record that at 6:05 p.m. Mr. Shanor joined the meeting prior to executive session.

Mayor Orr advised the governing body would be going into executive session to finalize the City's counteroffer to the Union.

Pursuant to Wyoming State Statute §16-4-405(a)(x), Mr. Roybal moved to meet in executive session, seconded by Mr. Case. Motion carried. Voting "yes" – all members of the governing body present. Mayor Orr identified, in addition to members of the governing body present, the City Clerk, City Attorney, City Treasurer, and Chief of the Fire and Rescue Department would also be present at the executive session. [City Clerk note: Audio recording of the special meeting was stopped; executive session convened at 6:05 p.m. in the Mayor's Conference Room]

Prior to assembly of the governing body in executive session, Mr. Roybal excused himself for the remainder of the meeting.

Following closure of the executive session, Mayor Orr reconvened the special meeting at 6:29 p.m.

Mayor Orr provided a brief verbal summary of the City's counteroffer by section noting the City accepts the Union's offer of Present Contract Language (PCL) for Section #26-Wellness/Fitness Program. Mayor Orr advised that for bundled sections 15-Department Staffing, 17-Hours of Work, 18-Trading Shifts, 20-Holidays and 35-Mileage Allowance, the City re-offers their 03-10-2020 offer, and if that offer is not accepted by the Union, City offer reverts to Original City proposal on each of these sections (15, 17, 18, 20 and 35). Mayor Orr advised that for 22-Overtime, the City re-offers their 03-10-2020 offer to eliminate redundant language, eliminate overtime pay at double time, impose 120 hour cap, and include Earned Off Duty (EOD) and if that offer is not accepted by the Union, City offer reverts to Original City proposal. Mayor Orr advised that for Section 37-Time off for Union business, the City re-offers original proposal and if that offer is not accepted by the Union, City offer becomes the following: a maximum of four members representing the bargaining agent shall use the "Union time pool" to attend contract negotiations and labor management meetings, provided they attend during their regular working hours. The "Union time pool" will consist of donated EOD and vacation hours from members. Other Union-related activities shall be requested in writing and must be approved in writing by the Fire Chief. Remaining Sections; 3-Exclusive Bargaining Agent, 8-Grievance Procedures, 13-Management Rights, 19-Inclement Weather, 21-Classification of Employment and Basic Wages, 28-Sick Leave, and 41-Prevailing Rights, the City re-offers their 03-10-2020 proposal.

Kevin West, Union Representative, requested a recess to caucus for the purpose of reviewing the City's counteroffer at 6:34 p.m.

Upon reconvening at 6:53 p.m., Kevin West, Union Representative, explained the Union is disappointed in the process of the negotiations to this point and advised the Union does not desire to enter arbitration. Mr. West reported the Union counteroffer consists of the following: Section 4- return to a 1-year term, 21-Classification of Employment, a 1% wage increase, and all remaining open sections are offered at Present Contract Language (PCL) and if not accepted by the City, they would revert to their original proposal.

Pursuant to Wyoming State Statute §16-4-405(a)(x), Mr. Shanor moved to meet in executive session, seconded by Mr. White. Motion carried. Voting "yes" – all members of the governing body present. Mayor Orr identified, in addition to members of the governing body present, the City Clerk, City Attorney, City Treasurer, and Chief of the Fire and Rescue Department would also be present at the executive session. [City Clerk note: Audio recording of the special meeting was stopped; executive Session convened at 6:56 p.m. in the Mayor's Conference Room] [Additional Clerk note: The purpose of the executive session was to allow Union representatives the opportunity to caucus to review the City's offer]

Following closure of the executive session, Mayor Orr reconvened the special meeting at 7:29 p.m.

Mayor Orr advised the City was available for an additional meeting on Tuesday, March 17<sup>th</sup> at 6:00 p.m. in Council Chambers, 2101 O'Neil Ave. and explained that at that time, the Governing Body would immediately go into executive session after which would present the Union with their counteroffer.

Mayor Orr stated the purpose of the special meeting had been met and adjourned the meeting at 7:30 p.m.

Submitted by,

Kristina F. Jones,  
City Clerk

This notice is available in alternative, accessible formats upon request.

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